

AI ENHANCEMENT AND THE RIGHT OF INTEGRITY – REHASHING THE 1980s COLORIZATION DEBATE

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AI Enhancement and the Right of Integrity – Rehashing the 1980s Colorization Debate

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Outstanding LLM Dissertations 2024

Abstract

With the rise and prominence of AI art and its profitability, it is clear that production companies and streaming platforms such as Netflix or Amazon Prime will look to ‘enhance’ works to which they own the rights, using those tools. While a plethora of works regarding AI in the IP space has been written recently when discussing authorship, and granting AI a legal personality, moral rights are often brushed over. Despite the novelty of AI tools, there is a long history of technological enhancements made on films with little legal resolution under Anglo-American legal systems. Therefore, this paper will, through a historical study of the colorization conflict in the US during the 1980s and its failure to provide directors with a satisfactory right, and through comparison with Continental European jurisdictions with a stronger moral rights tradition, seek to reform the right of integrity in light of this practice. However, it will also consider a balance between protecting directors from unnecessary AI enhancements to their films and the encouragement of the use of AI tools to efficiently restore films which would otherwise remain lost.

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'I'm the director. I *am* the film. I don't make the film' – Catherine Breillat, 2001.**

Chapter 1: Introduction

Production companies, such as Peter Jackson's Park Road Post-Production, now use Artificial Intelligence (AI) tools in post-production, both for the restoration of films with damaged negatives as in the documentaries: *The Beatles: Get Back* and *They Shall Not Grow Old*, and for commercial 'enhancement' of films such as *True Lies*, where original negatives remaining in good shape are 'painted over'.¹ Technological advancements in the modern era suggest that this is only the beginning. Recently, for instance, Apple Music introduced Dolby Atmos special audio to its music streaming, in an attempt to improve the listening experience on the platform by creating a centrepiece to music that creates a sense of immersion within the work.² Indeed, various heritage musical works, such as The Beatles' *Abbey Road* or Fleetwood Mac's *Go Your Own Way* have already been subject to such technological enhancement.³ Therefore, it is not inconceivable that film streaming services such as Netflix will opt to use AI technology with the aim of enhancing their viewers' experience.

Industry stakeholders have not always welcomed AI into the creative space. Take, for instance, the strikes conducted by Hollywood writers to protect their livelihood from Generative AI, as their roles are threatened by the prospect of AI-generated scripts.⁴ Indeed, as writers express their love for writing, citing the value of collaboration in the writers' room and the development of a final product, it is clear that this ethos is not shared by generative AI machines.⁵

Audiences also negatively view enhancements such as the *True Lies* remaster, with home video reviewers describing them as almost artificial, and claiming they had made the enhancements simply 'because they [could]'.⁶ Consistent with this sentiment is Zylinska's view AI art, who

** 'Chantal Akerman + Catherine Breillat. Film Theory. 2001. 6/7. (2001) European Graduate School Video Lectures, <<https://www.youtube.com/watch?v=l4hio9HJTeA>>.

¹ Growcoat M, 'Old Movies are Being Enhanced With AI Tools and Not Everyone is Happy' (2024) PetaPixel <<https://petapixel.com/2024/04/17/old-movies-are-being-enhanced-with-ai-tools-and-not-everyone-is-happy/>>.

² Butterworth B, 'Apple Music's New Spatial Audio is Dazzling – and Sometimes Dull' (2021) The New York Times <<https://www.nytimes.com/wirecutter/blog/apple-music-spatial-audio-review/>>.

³ Griffin A, '6 classic rock tracks you need to hear in Dolby Atmos on Apple Music (2022) techradar <<https://www.techradar.com/features/6-classic-rock-tracks-you-need-to-hear-in-dolby-atmos-on-apple-music>>.

⁴ Kinder M, 'Hollywood writers went on strike to protect their livelihoods from generative AI. Their remarkable victory matters for all workers' (2024) Brookings, <<https://www.brookings.edu/articles/hollywood-writers-went-on-strike-to-protect-their-livelihoods-from-generative-ai-their-remarkable-victory-matters-for-all-workers/>>.

⁵ Ibid.

⁶ Marsh C, 'A.I. Made These Movies Sharper. Critics Say It Ruined Them' (2024) The New York Times, <<https://www.nytimes.com/2024/04/13/movies/ai-blu-ray-true-lies.html>>.

argues that it celebrates the technological novelty of computer vision, fast-processing power and connection-making algorithms through dazzling colours and spectacles and contrasts, which she describes as a glorified version of Candy Crush that lulls audiences into submission and acquiescence, and relegates art to a technological spectacle.⁷ This is evident in many technological post-productions. For instance, the new mixes of songs with spatial audio on Apple Music have been criticised on the grounds that it is a 'solution looking for a problem', given audiences have enjoyed stereo music for decades.⁸ Similarly, one can come to the same conclusion with regard to AI enhancement in film by simply comparing two stills from *True Lies*, as depicted below:



Figure 1: *True Lies* (1994) AI enhanced shot (right) and original version (left) from Growcoot M., 'Old Movies are Being Enhanced With AI Tools and Not Everyone is Happy' (2024) PetaPixel, <<https://petapixel.com/2024/04/17/old-movies-are-being-enhanced-with-ai-tools-and-not-everyone-is-happy/>>.

On the other hand, AI amounts to a useful tool due to its capacity to restore films, adapt them to new technological media and produce transformative art. Take, for instance, *A Trip Down Market Street*, a century-old documentation of life in San Francisco's Market Steet at the turn of the 20th Century. Over a century later, Denis Shiryayev colorized and sharpened the footage at 4K resolution and interpolated the frame and colorized the footage using AI tools, to provide a vivid

⁷ Zylinska J, 'AI Art: Machine Visions and Warped Dreams' (2020) Open Humanities Press, p. 76.

⁸ Griffin (n 3).

colour image of life at the time.⁹ In his own words, this was a type of enhancement.¹⁰ Executives such as Geoff Burdick at James Cameron's Lightstorm Entertainment and Dan Best of Park Road Post Production have justified enhancements of pre-existing films, claiming that these enhancements were made as people were becoming accustomed to viewing things in high resolution, and so films needed to adapt to the era of OLED screens and 4K smart TVs.¹¹ Furthermore, Park Street's efforts in restoring films should not be forgotten either. Therefore, this paper does not argue against AI tools, but rather attempts to grant authors autonomy over their use in their films. To put it in the words of Martin Scorsese; 'it is important not to become a slave to the technology, but rather control it to put it in the right direction.'¹²

Therefore, it is not the place of the law to dictate what use of AI is productive and constitutes 'high art' and what is undesirable. Indeed, whether or not one finds favour with these remasters, insofar as there is no infringement of copyright, there is no place for the law to intervene. However, given the commercial success which technologically enhancing works can have, as seen both in the examples of Apple Music's Dolby Atmos mixing, as well as the colorization of black-and-white films which will be discussed below, legislating with regard to allowing directors to object to the AI enhancement of their films, or, as a minimum, a basis to negotiate, is necessary, given the rapid rise of AI art. One might extend Zylinska's argument to contend that the integrity of the work and intent of the author should be prioritised over a publishing company making changes merely to demonstrate their technological capabilities, as well as creating images that audiences might find easier to consume. Furthermore, returning to the example of Hollywood writers, whilst collectivisation has allowed members of the Writer's Guild of America West to oppose Generative AI scripts,¹³ it is contended that strong legal protections offer better protection against distortions of work.

Therefore, this paper will seek to provide a legal solution to directors who wish to control the doctoring of their published films in the age of AI enhancement in the UK, through a reform of the right of integrity under section 80 of the Copyright, Designs and Patents Act 1988. Chapter 2 will introduce the colorization debate in the US in the 1980s, the historical situation most analogous to the current debate, expressing the concerns of directors who saw their films

⁹ Simon M, 'AI Magic Makes Century-Old Films Look New' (2020) Wired, <<https://www.wired.com/story/ai-magic-makes-century-old-films-look-new/>>.

¹⁰ Ibid.

¹¹ Marsh (n 6).

¹² Shafer E, 'Martin Scorsese Doesn't Think Cinema is "Dying", but "Transforming": "It Was Never Meant to Be One Thing"' (2024) Variety, <<https://variety.com/2024/film/festivals/martin-scorsese-cinema-dying-transforming-berlin-film-festival-1235916743/>>.

¹³ Kinder (n 4).

colorized by rightsholders to their works, followed by a philosophical analysis justifying copyright intervention, and the shortcomings of the American system in protecting those interests. Given the inadequate protection provided to directors at the time, it will establish why it failed to inform its application under UK law in the age of generative AI. Subsequently, Chapter 3 will then analyse the problematic aspects of the right of integrity under UK law which fail to serve directors in this context, establish its common elements to US copyright law in the 80s, and propose legislative reform. Chapter 4 will provide a comparative approach between UK and continental European jurisdictions which provide better moral rights protection, in order to establish that the reform proposed in Chapter 3 is realistic, and will further compare legal culture in order to establish that it fits within UK law norms. Finally, Chapter 5 will examine whether such a right is prejudicial to desirable AI enhancements such as restoration of lost films. Overall, this paper will argue that a broader right of integrity must be developed, which is inalienable and develops the concept of honour under the wording of section 80 CDPA, should the UK copyright system adapt its right of integrity to the age of generative AI.

Chapter 2: A historical dive into film colorization and US copyright law

2.1. Introduction

This chapter introduces the scope of the paper and establishes the background information and philosophical foundations on which the scope of this paper will rely. As mentioned in the introductory chapter, this paper draws a parallel with the 1980s colorization debate in the US to inform policy-making. Colorization is selected as, similarly to AI enhancement, it constitutes an ‘improvement’ to a work, which commercially might be profitable, but has been opposed by directors and audiences alike. This conflict will be used for various reasons. Firstly, the perspectives of contemporary directors will be used as qualitative data to justify the intervention of copyright in the context of both colorization and AI enhancement. Secondly, given inadequate protection was provided to filmmakers and no satisfactory resolution was reached, it will inform what policies UK copyright ought to avoid in light of the AI debate.

2.2. Colorization in the 1980s

Simply put, colorization constitutes the conversion of black-and-white films into colour films.¹⁴ This process includes a frame-by-frame electronic scan of a videotape recording of the film, separated into 525,000 pixels, each representing a portion of the frame.¹⁵ At times, a sensing

¹⁴ Comment, ‘A Film of a Different Color: Copyright and the Colorization of Black and White Films’ (1986) 5 *Cardozo Arts & Entertainment Law Journal*, 503.

¹⁵ *Ibid.*

device is used to determine the original colours by reading the values of black, white and grey. Otherwise, new colours are assigned by colourists,¹⁶ and monitored by computers until a scene changes.¹⁷ This amounted to a time-consuming and expensive process, whereby several hours were needed to complete one minute of film,¹⁸ and several hundred thousand US dollars to colorize a single feature length film.¹⁹

This proved to be a highly profitable market, with high demand for colorized works. There has historically been a low market value for black-and-white films, with a typical colorized film in the 1980s worth over USD 2 million at the time, and colorized versions of films like *The Maltese Falcon*, which saw a 65% increase in market-share rating.²⁰

These processes were undertaken by colorization firms such as Ted Turner's Color Classic Network (CCN), who bought the rights to films from collections, notably Metro Goldwyn Meyer's collection of 3,800 black-and-white films,²¹ and subsequently contracted with firms such as Color Systems Technology, Inc. (CST), to colorize one hundred of them.²² Such films included pre-1948 works, such as *Casablanca* and *Yankee Doodle Dandy* by Michael Curtiz, who was deceased and could not voice his objections to the alteration. Others, such as John Huston, director of *The Maltese Falcon*, also colorized by CCN, appeared at a news conference in a wheelchair and oxygen mask to oppose the colorization of his film.²³ This attitude was shared by film directors, screenwriters and avid black-and-white film fans, who believed that films should be shown as originally intended by the filmmaker.²⁴

Conversely, colorization firms and film copyright owners who had invested millions in the market, hoping to generate revenues from the sales of colorized films, became proponents of colorization.²⁵ Specifically, they argued that the addition of colour to such films revitalised the public interest in films.²⁶ Thus, two interests seemed to clash: the interest of directors with

¹⁶ Ibid.

¹⁷ Schmuckler, 'Play It Again Sam... in Color' (1986) FORBES, 117.

¹⁸ Ibid.

¹⁹ Bennetts, "Colorizing" Film Classics: A Boon or a Bane? (1986) New York Times.

²⁰ Schmuckler (n 19), 118.

²¹ Harmetz, 'John Huston Protests "Maltese Falcon" Coloring' (1986) New York Times.

²² Kohs, 'Paint Your Wagon—Please!: Colorization, Copyright, and the Search for Moral Rights' (1988) 40 Fed Comm LJ 1.

²³ Ibid, 21.

²⁴ 'Hearings on H.R. 2400 Before the Subcommittee on Courts, Civil Liberties and the Administration of Justice of the House Judiciary Committee., 100th Congress, 3d Session, 1 (1988) (statement of Arthur Hiller, Directors' Guild of America).

²⁵ Comment (n 14).

²⁶ Hearings (n 24), (Statement of Roger Mayer), 2.

regard to the content of their work, and the interests of film industry business people with a pecuniary interest in the work.

Subsequent to this clash, directors including Woody Allen, Milos Foreman, Sydney Pollack and Peter Bogdanovich, representing the Directors' Guild of America, attempted to oppose this move by testifying to Congress against the colorization process.²⁷ In considering the perspectives of filmmakers, it was absolutely clear that directors were not merely, as explicitly expressed, advocating against colorization, but also for a stronger right allowing them to protect the presentation of their films as they were intended to be seen. Their arguments reflect both the desire for the authors' work to be protected, and the public interest in maintaining their original form.

According to Woody Allen, the issues resulting are threefold. Firstly, that publishers' economic interests should be balanced with the directors' creative freedom. Proponents of colorization, such as Buddy Young of Color Systems Technology, argued that it does not infringe anyone's rights, and that colorization is not a substitute for black and white films, but rather an alternative, whilst the president of Turner Entertainment Co. highlighted that five times as many people had watched the coloured version of *The Maltese Falcon* in the six months since its colorization, than the black and white version in the last 10 years. However, the director's perspective highlighted that their commercial interests were given greater importance than the filmmakers' original intent. The idea of enhancement, or improvement was merely used as an excuse to justify their distortion as a favour to the director. Allen himself had chosen to use black and white despite the availability of colour in his own work. Take *Manhattan*, for example, a film which he chose to film in black and white to evoke nostalgia whilst filming panoramic views of New York buildings. Conversely, *Annie Hall* was intentionally filmed in colour, as a black and white colour palette would have added seriousness to scenes intended to evoke jest and humour.²⁸ In allowing this process, Allen argued that a contempt for filmmakers was evident.²⁹

Secondly, from a cultural perspective, Allen argued that colorization results in an act of doctoring films to keep up with lower tastes, portraying the view of production companies of the public as stupid people who need bright colours to enjoy a film. Despite colorization proponents arguing that this leads to elitism by directors imposing their will on society,³⁰ more convincing

²⁷ Pagano P, 'Colorization Gets a Senate Hearing' (1987) Los Angeles Times <<https://www.latimes.com/archives/la-xpm-1987-05-13-ca-4198-story.html>>.

²⁸ 'Woody Allen, Milos Foreman Sydney Pollack Testify Against the Colorization of B&W Films (1987), Vanilla Skynet, https://www.youtube.com/watch?v=tb6pehnG8ZF&t=830s&ab_channel=VanillaSkynet.

²⁹ Ibid.

³⁰ Pagano (n 27).

seemed the argument that maintaining the original colouring of a film builds and maintains culture. Take the example of Ginger Rogers and Fred Astaire films, whose period photography and black and white colour palettes are representative of the era which they belonged to.³¹ By 'enhancing' them colorizers colour over works which contribute to our shared cultural film heritage and not merely something with which an individual director might have an intimate relationship.

Thirdly is the issue of consent. Representatives of the Guild were not opposed to colorization absolutely, they merely advocated for a right to object.³² Firstly, this was due to the notion that directors should not be obligated to have their films colorized against their will. Moreover, it was argued that filmmakers should be consulted during the colorization process, in order for the post-production to be accurately produced, and not have colorizers determine the image of the film, and possibly make mistakes in the process. Finally, a right to object would protect the integrity of the work of deceased filmmakers who would be powerless against producers owning the copyright to their work. Indeed, how would one go about colorizing *Citizen Kane* when Orson Welles cannot be consulted post mortem?³³

Adding a European perspective, Milos Foreman pointed to this being an issue pertinent to American film and legal culture, noting the greater level of protection which continental European jurisdictions offer films, where directors have more power to approve or disapprove certain aspects of the film.³⁴

2.3. Justifying the place of copyright and moral rights

It is certain that in copyright words, directors of the Guild were advocating for a right of integrity to be added to US copyright law. This right is found under article 6 *bis* of the Berne Convention, and serves independently of the director's economic rights. According to the Convention, authors and directors are provided with a right to object to any distortion, mutilation or other modification of, or other derogatory action in relation to the... work, which would be prejudicial to his honour or reputation. The Convention itself notes the functioning of this right as independent of the author's economic right and aims to protect the author-work bond,³⁵ generally as a prevention mechanism to the mutilation of work.³⁶ Indeed, as scholar Decherney suggests,

³¹ (n 28).

³² Ibid.

³³ Ibid.

³⁴ Ibid.

³⁵ Hook S, Moral Rights, Creativity and Copyright Law: The Death of the Transformative Author' (2024) Routledge Taylor & Francis Group, 12.

³⁶ Berne Convention article 6bis, CDPA section 80.

the addition of statutory moral rights dramatically raised the stakes of the conflict, which filmmakers had been advocating for since films first began being released.³⁷ Despite his argument that consequently, in the absence of colorization, some other catalytic event would have led to advocacy for such rights,³⁸ there are clear theoretical justifications for the application of the right of integrity in this context.

Whilst, as will be discussed in subsequent chapters, the Anglo-American copyright system has mostly been formulated in light of utilitarian philosophy, cultural theory, the most novel of the theories justifying copyright, can convincingly be used to advocate for a right for filmmakers to object to enhancements of their works. Fisher argues that copyright is justified as a means of creating a rich artistic tradition,³⁹ leading to a just and attractive culture.⁴⁰ This theory appears consistent with the testimonies of filmmakers found above reflect this philosophy. While colorizers argued that directors seek to dictate the culture, a seemingly more convincing assertion is that colorizing companies attempt to 'keep up with and cater to lower tastes' simply due to its fiscal productivity. Similarly, the same can be said about AI enhancement. Following Zylinska's argument, it is difficult to see how unnecessarily enhancing a film as a demonstration of technological capabilities can contribute to fostering a rich culture. This is a significant goal of the copyright system, as demonstrated at the Rome Conference in 1928, where moral rights were first introduced, and it was argued that their post-mortem application signals that the real reason for their protection was for the purposes of cultural heritage.⁴¹

Putting theory into practice, scholars such as Ginsburg argue that moral rights are significant in protecting cultural heritage, so that no detrimental changes can be made to the work, making it likely that the work will be presented as the author intended it to be.⁴² As such, ground is given to filmmakers' arguments about consulting directors during colorization, seeking consent and preserving the photography of the time as a means of keeping record of film as it was. Moreover, it is also useful in rejecting the arguments of proponents of colorizations with regard to providing an alternative to films some audiences are unwilling to watch, or the notion that films are made better. Indeed, it would not benefit the maintenance of our culture if one were to improve any

³⁷ Decherney P, 'Auteurism on Trial: Moral Rights and Films of Television' (2011) *Wis L Rev*, 317.

³⁸ *Ibid*, 319.

³⁹ Fisher W, 'Theories of Intellectual Property' in *New essays in the legal and political theory of property* (2001), 23.

⁴⁰ *Ibid*, 4.

⁴¹ Roeder MA, 'The Doctrine of Moral Right: a study into the Law of Artists, Authors and Creators' (1940) 53 *Harvard Law Review* 554, 575.

⁴² Ginsburg J, 'Moral Rights in the Common Law System' in David Saunders and Peter Anderson (eds), *'Moral Rights Protection in a Copyright System* (1992) Institute for Cultural Policy Studies, Griffith University), 21.

works simply due to the limitations of the technology at the time. Those seeking to make a profit from colorization argued that the enhanced version of the film merely provides an alternative to the original.⁴³ Similarly, contemporary scholars such as Penn rejected the analogy that colorizing a film is equivalent to painting a moustache on the Mona Lisa, given that the black-and-white film remains intact.⁴⁴

However, it is significant to note that there is a risk of the enhanced version of the work outperforming the original so much that it is rendered commercially redundant, and thus extinct. Note, for instance, the efforts of the European Union in its cultural and copyright agenda with Cultural Heritage Institutions due to the threat that works going out of commerce has on their preservation.⁴⁵ In the context of films, film archivists at Martin Scorsese's The Film Foundation have estimated that more than 90% of films made before 1929 have been completely lost, while half of all American films made before 1950 are also lost and unable to be viewed.⁴⁶ Following Allen's aforementioned argument, a great challenge is presented as to our ability to document films as representations of their era, central to establishing a culture, if those films are lost due to technologically enhanced alternatives outperforming them.

Furthermore, one can also identify personality theory in the directors' arguments. According to Hegel, the concept of freedom is a realised state of being reflected by the concept of 'will', or in other words, a consciousness of personality seeking to impose itself on the external world.⁴⁷ This is given a more concrete form through the appropriation of things allowing an 'absolute right' over property.⁴⁸ Similarly, the Kantian approach, which claims that authors enjoyed rights over their work by virtue of their personality that is innate and inherent,⁴⁹ and so an author's interest in deciding how and when to speak is an inalienable part of their personality.⁵⁰

Consequently, it is central that an artist is able to control their work through ownership, as an expression of personality. Indeed, such an approach is significant in the promotion of creative

⁴³ (n 28).

⁴⁴ Penn MC, 'Colorization of Films: Painting a Moustache on the Mona Lisa' (1990) 58 U Cin L Rev, vol. 58, 1040.

⁴⁵ European Commission, Memorandum of Understanding (MoU) on Key Principles on the Digitisation and Making Available of Out-of-Commerce Works, MEMO/11/619, 20/09/2011.

⁴⁶ Babiak L, 'Possession' and the Lost Movies of the Streaming Wars' (2021) Film Foundation, <<https://www.film-foundation.org/possession>>.

⁴⁷ Hegel GWF, 'Philosophy of Right' (1821) T.M. Knox trs., Oxford at the Clarendon Press, 1952, 1st edn, 1967 reprint, 39.

⁴⁸ Ibid, 44.

⁴⁹ Kant I, 'Von der Unrechtmassigkeit des Buchernachdurckes' cited in Stig Strohholm, 'Droit Moral – The International and Comparative Scene from a Scandinavian Viewpoint' (1983) 14 International Law Review of Industrial Property and Copyright Law, 11.

⁵⁰ Cotter, 'Pragmatism, Economics and the Droit Moral' (1997) North Carolina Law Review, 8–9.

endeavours. According to Ginsburg, some creators seek recognition and immortality through the preservation of their work, which they may find to be more important than material gain.⁵¹ Consequently, a strong moral right providing an objection or framework for involvement and negotiation in AI enhancement is likely to promote the creative endeavours of directors. With reference to Scorsese's attitude towards the use of AI in film, such an approach justifies the use of such tools in the right direction, or in other words, with reference to the wishes of the director.

2.4 The (insufficient) American approach

Whilst a consideration of moral rights under these justifications was provided by a report from the Congressional Office of the Library of Congress, which recommended the adoption of moral rights,⁵² it had appeared too late to have an effect on the Berne Convention Implementation Act of 1988. Therefore, directors were only able to negotiate the National Film Preservation Act of 1988, which added twenty-five films each year on the film registry, which protected their presentation in a distributed or altered form.⁵³ This clearly amounts to a small concession, and only protective of a minority of films.

The non-implementation of moral rights itself was justified under the notion that common law principles existed to safeguard those interests, and should be considered by the courts in cases where moral rights would otherwise apply.⁵⁴ However, both approaches are limited in their application.

The first common law theory was that of unfair competition under section 43(a) of the Lanham Act, which protects against unfair trade practices of false or misleading representation of goods and services in commerce. Despite the provision's main purpose of eliminating misleading trade practices, the courts had recognised its use in prohibiting false representations of an author's contribution in a literary or artistic work,⁵⁵ on the grounds that the misrepresentation is likely to confuse the public as to the artistic contribution,⁵⁶ and thus place the author at an unfair economic disadvantage.⁵⁷ Fundamentally, this rests on the public being misinformed as to the involvement of the director in the process. As such, in the case of *Gilliam*, where the Monty Python comedy group took legal action against ABC under section 43(a) for editing a programme,

⁵¹ Ginsburg (n 42), 16.

⁵² United States Copyright Office, *Technological Alterations to Motion Pictures and Other Audiovisual Works: Implications for Creators, Copyright Owners and Consumers* 12 (1989).

⁵³ National Film Preservation Act of 1988, 2 USC, [178].

⁵⁴ Berne Convention Implementation Act of 1988, HR Rep No 4262, 100th Cong., 2d Sess., 1988 US Code Cong & Admin News, 3715.

⁵⁵ *Follet v New Am. Library Inc.* 497 F. Supp. 304, [313].

⁵⁶ E.g. *Smith v Montoro*, 648 F.2d 603, [605].

⁵⁷ *Roeder* (n 43), 567-8.

the courts opined that ABC merely needed to provide a disclaimer that the group was not responsible for the decision.⁵⁸ In arguing for stronger protection of directors against colorization, Cook criticises this approach as impersonal, compared to the moral rights approach as opposed to the Berne Convention, claiming that it does not soften the injury or feeling which the author may suffer, but merely disconnects their name from the alteration.⁵⁹ However, as argued by Ricketson, such an approach ‘fail[s] to give effect to the spirit, if not the letter’ of the provision,⁶⁰ and this argument is evident when considering the directors’ perspective.

The second common law theory which was used in the place of article 6*bis* is defamation.⁶¹ A claim under this theory would entail a director arguing that the enhancement of their work would impair their reputation or standing in the community,⁶² due to the ‘inferior’ nature of the enhanced work. However, such claims are also limited. For instance, as Cook argues, action for defamation requires a defamatory statement damaging to the author.⁶³ Whilst it could be argued that the production of a lesser, lower quality film might damage the reputation of the director, as recognised in *Carroll v Paramount Pictures Inc.*,⁶⁴ it is difficult to interpret colorization or AI enhancement as defamatory, merely because the director did not intend for their film to look that way. Moreover, Comment suggested that certain directors may not have such a sizeable following as to claim that an action harms their reputation, regardless.⁶⁵ Alas, defamation is an insufficient ground for directors to oppose distortions that harm their artistic sensibilities.⁶⁶

2.5 Conclusion

This chapter has identified several issues for consideration in subsequent chapters. Directors’ perspectives have made clear that artistic autonomy and cultural heritage preservation render a personal right to integrity, that reflects the intimate relationship between director and film. As proven through the US’ non-implementation of Article 6*bis*, the insufficiency of the National Film

⁵⁸ *Gilliam v American Broadcasting Cos.*, 538 F.2d 14, [27] (Gurfein J).

⁵⁹ Cook AM, ‘Colorization of Black and White Films : An Example of the Lack of Substantive protection for Art in the United States’ (1988) 63 Notre Dame L Rev 309, 321.

⁶⁰ Ricketson S, ‘Australia’s Obligations under the Berne Convention’ in Peter Anderson and David Saunders (eds) *Moral Rights Protection in a Copyright System* (1992) Institute For Cultural Policy Studies Griffith University, 76.

⁶¹ E.g. *American Law Book Co v Chamberlayne*, 165 F. 313, [316].

⁶² ‘Prosser and Keeton on Torts’ (1984) 5th edn, 773.

⁶³ Cook (n 59), 332.

⁶⁴ *Carroll v Paramount Pictures Inc.* [1942] 3 FRD 95.

⁶⁵ Comment, ‘Toward Artistic Integrity: Implementing Moral Right Through Extension of Existing American Legal Doctrines, (1972) 60 Geo. L. R, 1556.

⁶⁶ Wagner CA, *Motion Picture Colorization, Authenticity and the Elusive Moral Right* (1989) 64 NYU L Rev 628, 219.

Preservation Act, and the unsatisfactory application of economic principles to this area, the colorization conflict suggests that in advising law-making in light of AI enhancement, a general and broad moral right is necessary. Copyright theories and the directors' perspectives, moreover, justify it.

Chapter 3: The insufficiency of the 'right of integrity' under UK moral rights

3.1. Introduction: UK law, moral rights and film

UK moral rights law generally, as well as in relation to film has been subject to significant criticism due to its limitations, especially when compared to continental European approaches. Despite the United Kingdom's status as an original member of the Berne Convention, it was in 1977 that the Whitford Committee recommended the formal implementation of article 6bis,⁶⁷ implemented under Chapter IV CDPA.

Section 80 introduces the right of integrity, which constitutes a two-step test. Firstly, there must be a treatment of the work, defined as an addition to, deletion from, alteration or adaptation of the work (ss. 2(a)). Secondly, such treatment must amount to distortion or mutilation of the work or be otherwise prejudicial to the honour or reputation of the author or director. This approach appears quite narrow, especially when compared with the approach under art. 6bis of the Berne Convention, which leaves a non-exhaustive list of 'treatment', including distortions and mutilations, whilst the UK use of the word 'otherwise prejudicial to the honour or reputation' suggests that derogatory treatment, including distortions or mutilations must prejudice the author in order to be infringing.⁶⁸ Otherwise, the UK lawmaker seems not to have expanded on the Berne Convention.

3.2. Considering the limitations of UK law: honour, reputation and the waivability of moral rights

This sub-chapter will make reference to the three problematic aspects of the right of integrity in covering AI enhancements. This will include the limited practical approach to the concepts of 'honour and reputation' as economic rights, the lack of development of the concept of honour under UK law, and the limitation of allowing moral rights to be waivable.

3.2.1. 'Honour and Reputation'

AI enhancement does not seem to be excluded from the first limb of the right of integrity as written, as treatments that may violate the right are non-exhaustive. However, the act itself

⁶⁷ Whitford Committee, Cmnd 6732, 1977, [51-57].

⁶⁸ Laddie et al, 'The Modern Law of Copyright' (2018) 5th edn Butterworth's Law, [27.17].

offers very little help as to whether the second step may cover this type of treatment. Despite the fact that the courts have recognised that colorization 'would normally be considered an alteration',⁶⁹ to provide an analogy, this was rendered in the context of false attribution of authorship, a separate moral right. Hence, there is no legal precedent that colorization, or any other type of enhancement, can constitute an action prejudicial to the honour or reputation of the director. However, a dissection of the right's history suggests that this is likely not the case.

The UK's implementation of article 6*bis* of the Berne Convention regarding moral rights marks the greatest difference between the colorization debate in the US and the present debate. Despite the fact that the UK implemented article 6*bis* on face value, its application is largely similar to the way in which common law principles do in the same context in the US, despite the fact that moral rights under UK law is expressly independent 'of the author's economic rights'.⁷⁰

Similarly to the US, the UK system relied on defamation law to justify its non-implementation of moral rights, initially.⁷¹ Despite its implementation, the wording of the provision set to the Convention's minimum requirements demonstrates the same limitations. Considering that derogatory action under the provision relates to prejudicial changes capable of causing the director reputational damage, it is clear that, philosophically, the provision contains similar elements to defamation and misrepresentation under the Lantham Act. Indeed, similarly to the Lantham approach, it would seem likely that a disclaimer that a director did not consent to the AI enhancement of the film would suffice to prevent reputational damage. Furthermore, in the same way as defamation claims, a director would have to argue that the enhancement contains defamatory content prejudicial to their honour or reputation. Consequently, no real difference between the general US approach and UK approach to moral rights is evident, but for the symbolic recognition that the UK explicitly recognises them as personal.

With reference to legal culture, this stems from the predominantly economic approach which results from the concept of 'harm to reputation'. Whilst scholars such as Cook distinguish the integrity right and defamation actions as it is a personal and not a pecuniary right,⁷² it is clear that UK law does not enforce it as such. Indeed, Hansman and Santilli argue that artistic reputation is based on the entire body of work that an artist has produced, and consequently, each individual work contributes to that reputation, and as such, the advertising value of future

⁶⁹ *Carlton Illustrators Ltd v. Coleman & Co. Ltd* [1911] 1 KB 771, [780].

⁷⁰ 6*bis*(1).

⁷¹ Hook (n 35), 81.

⁷² Cook (n 59), 327.

works.⁷³ Under such an approach, one could argue that despite the concerns of directors outlined above, the success of colorized films would create even greater difficulties in directors establishing reputational damage. Scholars have further linked the economic dimension of moral rights to cultural theory by recognising their social economic value. Watt, for instance, argues that the idea that reputational protection leads to better prospects for future works by authors leads to greater output, and thus more high-quality work.⁷⁴

Thus, referring back to the colorization debate, history seems to repeat itself. Given the concept of 'honour and reputation' can be criticised in the same way in which scholars criticised the American approach, it is argued that UK law is equally insufficient in protecting the right of integrity.

3.2.2. 'Honour'

Moreover, the concept of 'honour' does little to provide an effective right in the context of objecting to AI enhancement of films. However, common law systems have generally not implemented this right in a meaningful capacity. At its most extreme, Irish law fails to even include the word in its implementation of article 6*bis*.⁷⁵ In the UK system, whilst mentioned, there has been little expansion as to the concept of 'honour', with judges merely treating it as synonymous with 'reputation', and thus omitting to provide it with meaning.⁷⁶ One commentator argues that this comes as a result of the fact that 'reputation', stemming from defamation, has been well-established under UK law, whilst honour is lesser known.⁷⁷

The lack of development of a doctrine of honour under UK law is a disservice to the interests of directors who wish not to see their works enhanced by AI without their consent. Indeed, unlike the defamatory approach to reputation, where damage is calculated objectively, *in abstracto*, 'honour' has a more subjective and personal element. From an anthropological standpoint, the concept of reputation has been defined by Stewart as a right to respect or of having a certain worth, which thus includes insults.⁷⁸ Anthropological studies have confirmed its significance, as a social norm governing behaviour,⁷⁹ and various legal orders, such as Germany's, have

⁷³ Landes W, 'What Has the Visual Artist's Rights Act of 1990 Achieved?' (2001) 25 Journal of Cultural Economics, 452.

⁷⁴ Richard Watt, 'The Economic Dimension of Moral Rights' in Ysolde Gendreau 'Research Handbook on Intellectual Property and Moral Rights' (2023) Elgar Publishing, 191.

⁷⁵ Copyright and Related Rights Act 2000 (Ireland), s. 109(1).

⁷⁶ Griffiths J, 'Not such a "Timid Thing": The UK's Integrity Right and Freedom of Expression' in Jonathan Griffiths and Uma Suthersanen (eds), Copyright and Free Speech: Comparative and International Analyses (OUP Oxford 2005), [9.40-9.50].

⁷⁷ Cheng-Davies T, 'Avoiding another Bonfire of the Vanities: the Right to Object to Destruction under Moral Rights Doctrine' (2018) OpenAccess, 85.

⁷⁸ See; Stewart FH, 'Honour' (1994) University of Chicago Press, 21.

⁷⁹ Brandes S, 'Review of Honor by Frank Henderson Stewart' (1996) 23 American Ethnologist, 151.

recognised the utility of honour within a jurisdiction's legal order. Stewart, for instance, points to the German Federal Court as recognising honour as 'the right of a human being to have their personality respected'.⁸⁰

This reference to personality establishes the significant position which the development of such a doctrine may have on UK law, as well as the impact of its absence. Indeed, case law confirms that the character of treatment with reference to section 80 is to be evaluated *in abstracto*, without regard to the feelings and situation of the artist, or the quality of the work.⁸¹ Consider, however, Ginsburg's aforementioned argument that immortality and recognition are often considered more important to directors than material gain. Under this presumption, a concept of personal insult would better reflect the interests of directors, and provide a better incentive for the creation of works. This is evident from the statements made by the Representatives of the Directors' Guild during colorization hearings. By claiming that colorizers attempt to keep up with 'lower tastes', Allen, for instance, showcases that his work caters to a more distinguished audience. The fact that he highlights creative decisions in colouring *Manhattan* and *Annie Hall* demonstrates a desire for creative autonomy, the denial of which he interprets as contempt for the filmmaker. Therefore, it is likely that the production version of films which cater to those 'lower tastes' and the denial of such creative autonomy to filmmakers may indeed, following Ginsburg, discourage their artistic output.

3.2.3. *Waivability of moral rights*

Finally, outside the context of section 80, one problematic provision in the CDPA poses an obstacle to a directors' ability to object to the AI enhancement of their films: their waivability. Moral rights have been further criticised in the UK with regard to their enforcement. Whilst, similarly to continental jurisdictions, moral rights under the CDPA are not assignable,⁸² and to a limited extent are transmissible after death,⁸³ they may be waived.⁸⁴ This has received significant criticism from scholars such as Cornish, who argues that while the provision may offer a sense of relief in entrepreneurs who deal with authors and directors, authors' creative skills usually lie alongside commercial naivety, and so they should hold a right they could practise at the time of a particular exploitation, rather than surrender it in advance.⁸⁵ Compared to certain jurisdictions, as will be shown in subsequent chapters. Despite the fact that waivers are not incompatible with

⁸⁰ Ibid, 151.

⁸¹ Confetti Records & Others v. Warner Music UK Ltd Reference [2003] EWHC 1274.

⁸² Section 94.

⁸³ Section 97.

⁸⁴ Section. 87.

⁸⁵ Cornish WR, 'Moral rights under the 1988 Act (1989) 11(12) EIPR, p. 452.

the Berne Convention under art. 6*bis*, this sub-chapter will argue that broadly, moral rights are futile, should waivers continue to be permitted by the law.

Chapter V of the CDPA covers assignment of copyright works. According to section 90(1) copyright is transmissible by assignment. An exception to this rule is found under section 94, which establishes that moral rights are not assignable, thus limiting the act only to rights related to the economic exploitation of works. However, whilst there is no assignment of moral rights, they may be waived either formally,⁸⁶ or informally.⁸⁷

This is problematic on several grounds. On one hand, moral rights are futile if waivers are available. This is due to the fact that waivers are thus able to be implemented as prerequisites for assignment. Take, for instance, the commentary provided by the representative of an author, who claimed that ‘almost before the copies of the Act had left the Stationery Office, television producers were demanding a waiver of moral right as a condition of signing a contract’, to argue that this provision put the author at the mercy of the entrepreneur.⁸⁸ Indeed, according to Hook, all they achieve is the down-streaming of authors who wish to engage with their work.⁸⁹ In contrast to this, this essay argues that moral rights that are waivable will relegate those artists, as those who are willing to do so will be given an unfair advantage over those who wish to retain their rights. Furthermore, to allude to Allen’s argument, only a minority of directors will not be prejudiced by this provision, as only established and in-demand directors are able to object to waivers.

Under the idea that a broad right of integrity is necessary for directors to object to post-production acts such as AI enhancement, any reform would be moot, should those rights remain waivable.

3.3. Conclusion

Including an economic criterion, such as loss of future opportunities within the right of integrity, is not in and of itself problematic. However, to limit the right to an economic approach would constitute a disservice to the interests expressed by directors such as Woody Allen, as well as the philosophical foundations of copyright. Therefore, this chapter makes two policy recommendations. Firstly, it recommends the development of a concept of honour defined as personal insult, that grants autonomy over any changes to films, including AI enhancement to

⁸⁶ Section 87(2).

⁸⁷ Section 87(4).

⁸⁸ Campbell P (May 1990) The Writer’s Newsletter (the official periodical of the Writer’s Guild of Great Britain), 1.

⁸⁹ Hook (n 35), 83.

directors, subject to copyright exceptions. This would not require a change in the wording of section 80, but rather would be enacted by the judiciary, and minimise the need for statutory reform. Furthermore, it recommends that section 87 CDPA be struck, any change to the right of integrity would be obsolete, should it remain waivable.

Chapter 4: Taking wisdom from continental European jurisdictions

4.1. Introduction

The policy recommendations made above indeed provide the necessary tools for directors to object to or negotiate the use of AI enhancement tools to their work. However, it is not clear that such a right would fit into the UK legal order. Therefore, a comparative analysis of systems with a broader right to integrity and the UK, including their legal cultures, should be performed to determine whether a similar right can realistically be implemented into UK law. This chapter will argue that despite the differences between the systems, common law principles limiting property rights exist which would accept a broader right.

4.2. Moral rights and film under continental European law

Continental European approaches, though differing across jurisdictions, offer interesting approaches in proposing legal transplants for the UK to follow in establishing a right more apt in allowing directors to object to what might constitute an ‘improvement’ to their work.

Under the French Copyright Code, moral rights, or *droit moral*, are perpetual, inalienable and imprescriptible, and may only be conferred to another person under the provisions of a will.⁹⁰ Specifically, the right of integrity rests not on the honour or reputation of the director, but rather on the principle that the work is deemed completed when the final version is established by them.⁹¹ Fundamentally, moral rights under French law, under article L101-1 are established on the philosophical foundation that the author shall enjoy the right to respect for his name, his authorship and his work. Intrinsically, any changes, including additions, deletions or modifications not agreed upon by the director will constitute a violation of the right,⁹² due to a reflection of the relationship between the work and the author. This constitutes a very general approach even compared to other continental European systems such as Germany, where a director has the right to prevent any distortion or other impairment of their work which might prejudice ‘the legitimate intellectual or personal interest’ they might have in the work’.⁹³ Spain

⁹⁰ Article L121-1.

⁹¹ Article L121-5.

⁹² Ibid.

⁹³ German Authors’ Right Act.

similarly makes reference to the reputation of the artist, much like the UK, but also extends the right to their legitimate interests.⁹⁴ Other notable jurisdictions with similarly broad approaches include Greece, which reflects the French approach, making reference to respect of the name, status and work of the author,⁹⁵ and Poland, where the director has the right to see the contents and form of their work inviolable and properly used, granting significant control over its dissemination.⁹⁶

As aforementioned, the right of integrity under UK law is applied *in abstracto*, without regard to the feelings, to the situation of the artist or the quality of the work. According to Kamina, one of the reasons Anglo-American legal systems have been hesitant to accept a similar conception of moral rights rests on the vagueness and uncertainty of the wording characteristic of civil law systems such as those mentioned above.⁹⁷ Indeed, the Court of Cassation in France, for instance, has highlighted the discretionary character of moral rights.⁹⁸ Hence, a more subjective test for infringement is established, where it is up to the judiciary to determine whether an action constitutes a violation of the right on a case-by-case basis. This directly contradicts the very specific and detailed requirements under section 80 CDPA.

On a practical level, however, these vague approaches lend themselves to more desirable protection at the judicial level. Colorization, as well as post-production, has been recognised as violating the right of integrity by the French courts, on the grounds that respect for the integrity of the film implies that it be released in its unabridged form,⁹⁹ whilst the public ought to be informed where a film is abridged from a longer film created by the director.¹⁰⁰ Regarding colorization, the Court of Appeals of Versailles granted an objection under the right of integrity to the heirs of John Huston 2, stating that it ‘damages the creative activity of the directors, even if it satisfies, for... commercial reasons, a certain public demand’.¹⁰¹ Furthermore, as a general rule, French courts treat waivers to the right of integrity as null and void,¹⁰² whilst in Germany waivers are strictly prohibited.¹⁰³

⁹⁴ Author’s Right Act, art. 14.

⁹⁵ *Ibid*, art. 4.

⁹⁶ *Ibid*, art. 16(3) and (5).

⁹⁷ Kamina P, ‘Film copyright in the European Union’ (2016) Cambridge University Press, 343.

⁹⁸ Court of Cassation, civ. I, 5 June 1984, Bull. Civ. I, no. 184, D. 1985, inf. Rap. 312, obs. Colombet.

⁹⁹ Court of Cassation, 9 April 1987, Revue Dalloz, 1988, p. 97.

¹⁰⁰ Court of Cassation, 17 January 1995, Colet Ste Teleproductions Bartoli v. Michel Blaise.

¹⁰¹ Turner Entertainment v. Huston (Asphalt Jungle), Paris Court of Appeal, 6 July 1989, Court of Cassation, 28 May 1991, noted in (1991) 4 Entertainment LawReview E-55. Versailles Court of Appeal, 19 December 1994, RIDA, April 1995, 389.

¹⁰² Kamina (n 97), 384.

¹⁰³ Dietz, ‘International Copyright Law and Practice’, para. 7[b].

To cement the point that continental European moral rights are preferable in this context, the estate of John Huston, a filmmaker who opposed colorization in the 1980s, sued for violation of moral rights in France, after Turner Entertainment colorized his film. There, the Court of Cassation ruled in favour of his heirs, recognising the films as if they were historic landmarks.¹⁰⁴

In light of this comparison, a broader right of integrity is proven to be better equipped to provide protection to directors in objecting to AI enhancement of their films, and takes into account many of the issues this paper is concerned with, including France's protection of heritage films as national treasures, which the Anglo-American economic approach to moral rights simply does not.

4.3. Comparing legal cultures

However, it would be naïve to simply advise they be introduced to the UK legal system without an examination and comparison of relevant legal cultures and the development of copyright systems. Indeed, legal systems evolve relative to legal culture, and a right successfully implemented under one jurisdiction is not guaranteed to fit within another.

Moral rights can be traced back to post-Revolution France where, though uncoded, the underlying assumption of a right of personality was recognised.¹⁰⁵ Rose draws attention to the Parliament of Paris having accepted the recognition of an author's interest in controlling the publication of their works, to stress that this had not been done in England at the time.¹⁰⁶ It is thus clear that the philosophical foundation of a natural right of an author towards their work is a continental concept.¹⁰⁷

Furthermore, one can draw from the post-Revolutionary French idea of 'Enlightenment', particularly attributable to Descartes, Grotius and Locke, who viewed human reason as God's gift to humanity, and believed that humans were to utilise this power to fulfil God's plan.¹⁰⁸ According to such writers, it was argued that, in a move away from monarchy and despotism, reason should guide all human affairs, by virtue of usefulness, as opposed to birth.¹⁰⁹ Such a conception gave

¹⁰⁴ Discussion in Decherney (n 37).

¹⁰⁵ Adeney, 'The Moral Rights of Authors and Performers: An International and Comparative Analysis' (2006), Oxford University Press, 30.

¹⁰⁶ Rose, 'Authors and Owners: The Invention of Copyright' (1993), Harvard University Press, 20.

¹⁰⁷ *Ibid*, 21.

¹⁰⁸ Glenn, 'Legal Traditions of the World: Sustainable Diversity in Law' (2014) Oxford University Press (5th edn), 132.

¹⁰⁹ Charles-Louis de Secondat, Baron de la Brede et de Montesquieu, 'The Persian Letters' (1973), Penguin Classics.

rise to *le droit subjectif* (subjective rights),¹¹⁰ aimed at controlling wrongs and rights to every person.

By contrast, the notion of the subjective right played little to no role in the development of the common law in England, which was rather governed by relations and mutual obligations,¹¹¹ in a system governed by contractual and capitalistic legal structures,¹¹² where freedom of contract is emphasised as a catalyst of trade.¹¹³ Hence, the UK legal system gave rise to the Roman law concept of *ius abutendi*, or the right to full dominion over property.¹¹⁴ According to utilitarian copyright theory, offering a monopoly to authors and directors to make copies of their works avoids the economically inefficient outcome of copyists who bear a low cost of production undercutting them.¹¹⁵ This *laissez faire* approach to copyright thus renders evident the system's focus on the person exploiting the work and the relevant rights concerned with their activities, as opposed to those attached to the creator of the work and their spiritual connection to it. Thus, Saunders argues that the under-developed legal order to moral rights under English law is unsurprising, as they would be difficult to imagine in the framework of a system which was not largely founded on individualistic principles and respect for the human person generally.¹¹⁶

4.4. The feasibility of a legal transplant

As a result, the difference in the levels of development between continental European orders and the UK order are evident. As aforementioned, moral rights in continental European states expand on the Berne Convention. Clearly, this is due to a philosophical foundation for such rights. France, for instance, had even advocated for stronger moral rights, unsuccessfully proposing that they be made inalienable at the Brussels Revision Conference of 1948.¹¹⁷ This can be directly contrasted to the UK approach, which copies the Berne Convention and, as aforementioned, reflects economic interests behind the veil of a personal right. It is evident that reliance on defamation constituted an implementation of article 6*bis* and an adherence to the UK's Berne obligations without disturbing the concept of *ius abutendi*. Indeed, as Marin and Bick argue, constraints to property rights in the use of land are limited to issues of public interest, laws

¹¹⁰ Glenn (n 108), 149.

¹¹¹ Ibid.

¹¹² Saunders D, 'Authorship and Copyright' (1992) Routledge, 75-6.

¹¹³ Giliker P, 'A Role for Tort in Pre-Contractual Negotiations – An Examination of English, French and Canadian Law' (2003) 52 Int'l & Comp LQ, 990.

¹¹⁴ Memorandum by the Italian Delegation (Moral Rights) Rome Conference 1928 in Arpad Bogisch, 'The First Hundred Years of the Berne Convention for the Protection of Literary and Artistic Works' in The Berne Convention for the Protection of Literary and Artistic Works from 1886 to 1986 (International Bureau of Intellectual Property 1986).

¹¹⁵ Landes W and Posner R, 'An Economic Analysis of Copyright Law' (1989) Journal of Legal Studies 18, 325.

¹¹⁶ Ibid, 78.

¹¹⁷ Kamina (n 97), 340.

imposing limitations of a person's use of their tangible property based upon another's perception of interest in that property would be alien to the UK legal order.¹¹⁸

However, even in a system such as that of the UK, *ius abutendi* cannot practically be absolutely implemented. With reference to Martin and Bick, whilst interpreting the right conferred by article 6*bis* as a limitation based upon another's perception of interest in that property would not fit within UK law, it can be argued that such a right might fit in if justified by the public interest. Therefore, it is argued that this is indeed the case, as the creation and preservation of an attractive culture are indeed in the public interest.

This paper has already highlighted the threat which 'improved' versions of works represent to the commercial viability of works, leading to their extinction, as well as the indirect, but significant role which moral rights have in cultural heritage preservation. This was expressed in the debates on the Copyright, Designs and Patents Bill (later CDPA 1988), where Lords Morton and Hutchison highlighted that moral rights were to protect reputation and *not* economic rights, evidencing a copyright system aimed beyond the exploitation of works.¹¹⁹ One justification to effectively limit *ius abutendi* under the public interest justification of cultural heritage preservation stems from Joseph Sax's seminal work on the destruction of art, *Playing Darts with a Rembrandt*, where he argues that the concept of qualified ownership relies on the recognition of some objects as a constituent of a community, and that ordinary private dominion over them insufficiently accounts for their rightful stake in them.¹²⁰ The protection of the ethical stake in work to which cinephiles who are interested in films being maintained in their original form adhere can be justified through the Kantian conception of the book 'as a writing which represents a speech that someone, through visible signs of language, holds before the public'.¹²¹ Borghi built on this to develop three characteristics of subject matter in copyright, that subject matter should be understood as an action, since the speech is offered to the public as thought, rather than property; that the subject matter represents a process of thinking, only possible through communication,¹²² and so the subject matter's status is dual, as it is both the author's speech, as well as an address to the public.¹²³ In the same vein, director Wim Wenders claimed that films

¹¹⁸ Martin S and Bick P, 'Moral Rights for Artist: A Report Prepared for the Australia Council (1984), 27.

¹¹⁹ Mr Toby Jessel MP, Hansard HC Deb 28/4/1988 vol 132 cc 579-580, Mr Kenneth Clarke MP Hansard HC Deb 28/4/1988 vol 132, cc 525, my emphasis.

¹²⁰ Sax J, 'Playing Darts with a Rembrandt: Public and Private Rights in Cultural Treasures (1999) University of Michigan Press, 197.

¹²¹ Borghi M, 'Copyright and Truth' (2011) 12 Theoretical Inq L 1, 4-14.

¹²² *Ibid*, 6-8.

¹²³ *Ibid*, 11-13.

‘only exist in people’s eyes anyway’.¹²⁴ Therefore, the public holds ownership of culture and cultural goods, on a moral level, and should thus be treated as a stakeholder in this context. Under this presumption, in practising their right to exploit and modify the work owned by them, assignees of copyright work, who are only interested in exploiting them, intrude on the public’s stake in a film. Given the aforementioned numbers provided by Scorsese’s foundation demonstrating the amount of extinct pre-1950s works, it appears as if limiting *ius abutendi* in this way can be justified by UK legal culture.

Furthermore, utilitarian theory itself justifies the monopoly conferred by copyright as covering the ‘costs of expression’, which encourage artists to create more works, so that those who have not created the works cannot undercut them through ‘low costs of production’.¹²⁵ Thus, the utilitarian approach to the provision of IP rights fundamentally rests on its final product of maximising cultural output in the most economically efficient way.

However, this approach rests on a fundamental misunderstanding of the catalysts of creativity. Coming back to Ginsburg’s argument referenced in Chapter 1 of this paper, for instance, pecuniary interests are not always at the forefront of an artist’s motivations. This is further evidenced by the ethos of the directors opposing colorization. Thus, given the philosophical underpinnings of the UK’s approach to copyright law themselves are justified by the encouragement of creativity and creation of culture, it should not be treated as a sacred cow, and thus limited, when it defeats its own purpose.

4.5. Conclusion

In conclusion, this chapter’s analysis of elements of continental European jurisdictions makes clear that the development of a broader right of integrity will offer better protection in allowing directors to object to the ‘enhancement’ of their works, as they provide better protection over their autonomy post-assignment of their works. This paper argues that the idea of improvement or monetary gain does not always guarantee that the creative result will be ‘better’ and that directors themselves are more competent in determining whether their work has been mutilated on the grounds that their personality is expressed within it.

Furthermore, it is clear that UK legal culture would allow for the introduction of a broader right to integrity. Given that protecting the autonomy of directors over the presentation of their works

¹²⁴ Wenders W, ‘Instant Stories. Wim Wnders’ Polaroid – Audio Guide’ (2017) The Photographers Gallery, <<https://thephotographersgallery.org.uk/whats-on/wim-wenders-instant-stories>>.

¹²⁵ Fisher (n 39), 2.

is linked to the preservation of culture, it is clear that the UK law conception of property can be limited by this public interest, as it has been in different contexts.

Chapter 5: Balancing enhancement and restoration

5.1. Introduction

Whilst, thus far, this paper has engaged with the parallels between the colorization debate and the issue of AI enhancement, these two debates differ in one significant element. Whereas arguments made by colorizers alluded to the market value of the post-produced films, while AI tools can be used to enhance a film in a way that may be considered a mutilation, and may even result in the original film becoming extinct, copyright policy needs to conform to the needs of those engaging in the public mission of restoration.

This chapter will argue that the broad right to integrity proposed in previous chapters is best balanced with the interest in restoring damaged films through IP forbearance, in a manner that is governed by norms, as opposed to legal mechanisms, in order to allow effective autonomy over work, regardless of assignment of economic rights, whilst ensuring restorers are able to perform their task using AI tools.

5.2. AI restoration of films

A demonstration of uses of AI which have already been made to restore films, as well as the cultural benefits emanating thereof, evidences the importance of promoting the use of those tools.

The process of restoration as a means of saving cultural heritage is nothing new, as its roots can be traced back to the mid-16th Century.¹²⁶ Historically, it is commonly held that technological advances play a significant role in restoring artworks,¹²⁷ enhancing the integrity of restoration,¹²⁸ limiting the divergence between the restoration and the original,¹²⁹ and reducing the cost of time, labour and money required to preserve works.¹³⁰

¹²⁶ Li Y, 'AI restoration brings 'dying' masterpieces back to life but tricks copyright?' (2022) *Journal of Law and Information Technology*, 368.

¹²⁷ S Bagwell 'The Beauty of Science: New Technologies at the Service of Cultural Heritage' (2018) *Heritage Preservation*, 1.

¹²⁸ F Di Paola, G Milazzo and F Spatafora 'Computer Aided Restoration Tools to Assist the Conservation of an Ancient Sculpture. The Colossal Statue of Zeus Enthroned' (2017) 42 *International Archives of the Photogrammetry, Remote Sensing and Spatial Information Sciences*, 177.

¹²⁹ M Barni, et al, 'Image Processing for Virtual Restoration of Artworks' (2000) 7(2) *IEEE multimedia*, 34-7.

¹³⁰ M Kubik, 'Hyperspectral Imaging: A New Technique For the Non-Invasive Study of Artworks' (2007) 2 *Physical Techniques in The Study of Art, Archaeology and Cultural Heritage*, 214.

Consistently with this conception, AI tools constitute a radical advancement in the capacity to restore works of art under threat of extinction. On a technical level, AI restoration is based on neural networks (NNs), or deep learning networks, with a large number of parameters and layers.¹³¹ This allows methods of deep learning, enabling machines to perceive and comprehend the world in terms of a hierarchy of concepts, defined through their relations to a similar concept.¹³² According to Li, the use of neural networks has the potential to generate results aligning with the intentions of the original creators, given they take advantage of the combination of various styles of human-created input to enable the algorithm to understand human artists.¹³³ Furthermore, another hybrid model used includes automatic mask generation based on mask region-convolution neural networks (Mask R-CNN), and image inpainting through modified U-Net architecture with partial convolutions and automatic mask update.¹³⁴ This is a two-phase method subject to quantitative and qualitative assessments,¹³⁵ which first generate an automatic mask for damaged paintings through the Mask R-CNN technique,¹³⁶ and subsequently remove any irregularities, such as damage to images by employing a modified U-net model.¹³⁷

Such technologies have salvaged artworks previously thought to be lost, including Beethoven's unfinished composition, where NNs were used to educate the machine into predicting what Beethoven would have written,¹³⁸ through a study of classical music, his own music and the notes from the unfinished composition.¹³⁹ Similarly, a team employed by the Rijksmuseum used AI tools to restore missing edges from Rembrandt's *The Night Watch*,¹⁴⁰ where three types of algorithms were run: one to single out and correct the perspective distortions, one to recognise the colour scheme of the original and to project it on the missing pieces, and a final one to emulate the brushstroke technique employed by Rembrandt.¹⁴¹ Consequently, the full painting was restored

¹³¹ J Patterson and A Gibson, 'Deep Learning: A Practitioner's Approach' (2017) O'Reilly Media Inc., 6.

¹³² I Goodfellow et al, 'Deep Learning' (2016) MIT Press, 1.

¹³³ Li (n 128), 370.

¹³⁴ V Gupta et al, 'Restoration of Artwork Using Deep Neural Networks' (2021) 12(2) *Evolving Systems*, 445.

¹³⁵ *Ibid*, 445-6.

¹³⁶ *Ibid*, 441.

¹³⁷ *Ibid*.

¹³⁸ L Castillo, 'Artificial Intelligence Helps Complete Beethoven's Unfinished Symphony' (2021) DOGnews, <<https://www.dogonews.com/2021/10/20/artificial-intelligence-helps-complete-beethovens-unfinished-symphony>>.

¹³⁹ *Ibid*.

¹⁴⁰ C Criddle, 'Rembrandt's The Night Watch painting restored by AI' (2021) BBC News, <<https://www.bbc.com/news/technology-57588270>>.

¹⁴¹ D Boffey, 'AI Helps Return Rembrandt's The Night Watch to Original Size' (2021), TheGuardian, <<https://www.theguardian.com/artanddesign/2021/jun/23/ai-helps-return-rembrandts-the-night-watch-to-original-size>>.

for the first time in 300 years.¹⁴² The same mechanisms can be used in relation to aspect ratio, colour palettes, sound and other aspects of film in order to restore lost films.

As aforementioned in this paper, a similar process was adopted by the Machine Audio Learning (called Mal after the late Mal Evans, Beatles roadie) based on NNs, to the old Beatles *Get Back* sessions.¹⁴³ This process included listening, checking, making notes and erasing background noise from the instrument or vocal to be separated.¹⁴⁴ Furthermore, it was adopted to restore dialogues in-between scenes, especially in cases where multiple members of the band were speaking simultaneously.¹⁴⁵ AI tools had even proved sophisticated enough to separate parts of Ringo Starr's drum kit, as well as the individual voices of George Harrison, Paul McCartney and John Lennon when singing in unison.¹⁴⁶

5.3. Do broad moral rights limit restoration?

Consequently, the potential of AI enhancement tools in restoring heritage films which might otherwise become extinct should be recognised and promoted by the copyright system. Indeed, with reference to cultural theory, there is a strong theoretical argument that copyright lawmakers should design copyright rules in light of allowing such activities. However, as is evident from the proposal made in the previous chapter, a broader, imprescriptible and inalienable right of integrity extending defamation to personal insult will result in a final say over any modification, meaning that the tide would indiscriminately take both post-producers 'mutilating' works, and those attempting to restore films.

This would be perceived by this paper as a failure on the part of the lawmaker. Indeed, as aforementioned, section 80(2)(a)(i) sets a non-exhaustive list of actions which may be considered a treatment of work. A broader approach section 80, would practically allow the director to oppose any modifications at all, on the grounds that they cause them personal insult. Consequently, any of the modifications outlined above would be prevented by the director or their estate, provided they do not fall in the public domain under the general duration rule of copyright expiration 70 years following the director's death.¹⁴⁷

Whilst this paper recognises personality theory as an apt justification for extending the right of integrity, it has also been argued that strong moral rights are significant due to their power in

¹⁴² Ibid.

¹⁴³ M Vukmanovic, 'Delicate Sound of AI Restoration – "The Lord of the Things"' (2024) *Social Informatics Journal* 3(1), 53.

¹⁴⁴ Ibid.

¹⁴⁵ Ibid, 54.

¹⁴⁶ Ibid, 53.

¹⁴⁷ CDPA, section 13B(2).

preserving cultural heritage, which belongs to the public, and is thus in the public interest. Consequently, whilst this is practically achieved where the director wishes to preserve the work in its original form, it becomes counter-productive when used against restoration, which also serves this goal. Hence, a balance must be sought.

5.4. IP forbearance

Consequently, this paper argues that legal solutions might not be the proper way to strike this balance. Indeed, whilst overprotection is likely to discourage restoration, any under-protection, such as that currently provided by the UK system, is likely to encourage AI enhancements, and thus result in the extinction of works. Hence, the creation of an IP negative space is the best way to govern restoration.

IP negative spaces, a term coined by Raustiala and Sprigman, are defined as areas encompassing any 'substantial area of creativity' in which IP laws do not penetrate or provide only a limited propertisation, resulting in creativity, despite low IP involvement.¹⁴⁸ One such form of negative space relevant to this thesis is IP forbearance. Such activity is demonstrated by communities and industries where putative IP holders forego exclusivity, declining to pursue infringers.¹⁴⁹ Such examples include the open-source software movement, creative commons and copyleft communities which rely on licensing, and thus necessitate intellectual property rights.¹⁵⁰ These movements are often rewarded with intangibles such as recognition, pride and a superior product resulting from the collaborative creation.¹⁵¹

Similarly, the restoration of old, damaged film that is still in copyright often requires a collaborative effort among various stakeholders interested in the restoration of the film, including audience communities as justified by Kant's aforementioned theory of the book, the copyright owner and institutions with the requisite tools to make the restoration. In this way, rather than IP rules, restorations may be governed by norms, fostering collaboration. Indeed, social norms have historically governed various areas where the positive law has been insufficient, such as the governing of fisheries, irrigation systems and livestock ranches.¹⁵² Commentators studying IP's negative space argue that, often, industries are governed by norms

¹⁴⁸ K Raustiala & C Springman, 'The Piracy Paradox: Innovation and Intellectual Property in Fashion Design' (2006) 92 Va. L. Rev., 1764.

¹⁴⁹ E Rosenblatt, 'A Theory of IP's Negative Space' (2010) Columbia J. of L. & the Arts, 324.

¹⁵⁰ *Ibid*, for discussion, see 330.

¹⁵¹ For discussion, see Y Benkler, 'Sharing Nicely: On Shareable Goods and the Emergence of Sharing as a Modality of Economic Production' (2004) 114 Yale L.J., 321-30.

¹⁵² R Ellickson, 'Of Coase and Cattle: Dispute Resolution Among Neighbours in the Shasta County' (1986) 38 Stan. L. Rev. 623.

rather than IP rules, as the former is more desirable in fostering creativity.¹⁵³ This necessary collaboration between those possessing AI tools and copyright-holders likely creates such a negative space.

Rosenblatt offers various justifications and normative implications for negative spaces, two of which appear particularly relevant to answering this question. Firstly, the negative space creates a context where productive infringement should be encouraged.¹⁵⁴ Secondly, under the argument that it is just as damaging to creation to overprotect work, as it is to under-protect it, negative spaces fill this void.¹⁵⁵ Of course, in the context of this paper, the proposal to broaden the right of integrity would certainly contribute to this, and empower directors, but more likely their estates negotiate the restoration and approve or disapprove decisions made. However, it is argued that by resisting the urge to sue and ask questions later, a more collaborative approach, which comes to the benefit of the restoration of the work is to be encouraged.

5.5. Conclusion

In summation, this chapter argues that IP forbearance is the most realistic and effective balance to the proposal made for a broader right to integrity. Indeed, it is in the interests of both the restorer and the rightsholder to see the work come back to life, and thus become commercially viable. Therefore, it is likely that despite the great power given to the latter by this paper's proposal, social norms and the restorers' access to AI tools are likely to encourage a collaborative approach governed by norms, as opposed to legal mechanisms. Therefore, the broader interpretation of the right of integrity proposed will not affect restorers' ability to bring films back to life.

Chapter 6: Conclusion

This paper has explored various debates and arguments in order to propose an improved right of integrity under UK law, in light of the use of AI in enhancing films. Initially, it explored the arguments made by filmmakers in the 1980s during the colorization debate, and found that the interests they advocated for were consistent with various philosophical justifications of copyright protection, including cultural theory and personality theory. However, it was also found that US law at the time was not sufficient in providing justified protection, as the right of integrity was never provided under US law, due to the presence of defamation law and the Lantham Act, which are economic rights, and, as such, these fail to provide personal protection

¹⁵³ Rosenblatt (n 149), 339.

¹⁵⁴ Ibid, 360.

¹⁵⁵ Ibid, 361.

to directors. Furthermore, it found that despite its implementation of this right, per the Berne Convention's requirements, UK law similarly fails to provide apt protection, due to its reliance on defamation solutions in interpreting modifications that are prejudicial to the honour or reputation of the director. These similarities are confirmed by the utilitarian philosophies on which both systems base their implementation of the application of copyright law. The undeveloped concept of 'honour' as well as the waivability of moral rights under the CDPA were identified as the two main areas of the CDPA requiring amendment in order to achieve the aims of this paper. Next, it investigated the application of *droit moral* in continental European jurisdictions, which are typically more sympathetic to moral rights in comparison to UK law, and established that UK legal culture would allow such a broad application of those rights, as they achieve the aims of encouraging directors to make films, which is the objective of utilitarian theory, as well as the fact that the public interest of cultural heritage preservation justifies an exception to the absolute right of ownership held by assignees of rights. Finally, whilst a broad right is recommended to serve the interests of directors, this will not come at the behest of the use of AI tools in film restoration, as it is likely that rightsholders will abandon their claims in order to collaborate with restorers, who hold the tools to bring the works back to life.

Therefore, this paper proposes two changes to the right to integrity under the CDPA 1988. Firstly, the concept of 'honour' ought to be interpreted as personal insult in order to provide a stronger right to object to modifications made to films, so that directors may object to the distortion of their films, regardless of its effect on economic performers and their careers, on which the current approach focuses. Furthermore, such a change would be obsolete without inalienable moral rights. As such, this paper, secondly, further proposes the removal of section 87 CDPA, which allows moral rights to be waived.

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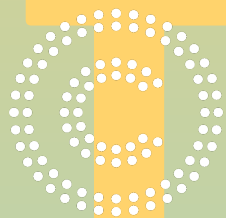
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